

SEOUL METROPOLITAN GOVERNMENT FRAMEWORK ORDINANCE ON ARTIFICIAL INTELLIGENCE

Enactment No. 9752, Jul. 14, 2025
Amendment of Other Laws No. 9834, Sep. 29, 2025

Article 1 (Purpose)

The purpose of this Ordinance is to prescribe the matters necessary to prepare the social foundations for the safe and trustworthy development and use of artificial intelligence and the establish and implement the relevant policies, thereby protecting the interests and dignity of the general public and improving their quality of life.

Article 2 (Basic Principles)

Policies concerning the development and use of artificial intelligence shall be implemented pursuant to the following basic principles:

1. The development of AI shall aim to enhance human safety and promote trustworthiness in order to raise citizens' quality of life;
2. The implementation of AI shall respect enterprises' creative spirit and create the conditions necessary to ensure the safe use of artificial intelligence;
3. The development and use of AI shall not cause individuals or organizations to be discriminated against on such grounds as their gender, age, ethnicity, religion, social status, economic circumstances, or political views;
4. The implementation of AI shall enable all citizens to adapt reliably in the face of the ongoing changes in all areas of daily life, including the social, economic, and cultural aspects, etc.

Article 3 (Definition)

The definitions of the terms used in this Ordinance shall be as follows:

1. "Artificial Intelligence" refers to the digital implementation of human intellectual abilities, such as learning, inference, awareness, judgment, and language comprehension.
2. "Artificial intelligence technology" refers to hardware or software technology that is necessary to realize artificial intelligence, or technology that enables the use of such technology.
3. "High-impact artificial intelligence" refers to an artificial intelligence system for which concerns are raised about its potential material impacts on or risks to human life, physical safety, or their fundamental rights.

Article 4 (Responsibilities of the Mayor)

- (1) The Seoul Metropolitan City Mayor (hereinafter referred to as the "Mayor") shall prepare policies for the safe and trustworthy development and use of artificial intelligence.
- (2) The Mayor may offer administrative, financial, and technological support for efficient promotion of the development and use of artificial intelligence.
- (3) When implementing policies for the development and use of artificial intelligence, the Mayor shall make efforts to prevent discrimination against socially disadvantaged persons and vulnerable groups, etc.

Article 5 (Relationship to Other Ordinances)

Except as otherwise provided in other ordinances, the development and use of artificial intelligence shall be governed by this Ordinance.

Article 6 (Master Plans)

- (1) Every three years, the Mayor shall formulate and implement a Seoul Metropolitan City artificial intelligence master plan (hereinafter referred to as a "master plan"): Provided, however, that where a master plan is formulated by inclusion in another plan, the master plan may be governed by the other plan's life cycle.
- (2) A master plan shall include the following matters:
 1. The basic direction and goals of the artificial intelligence policy;
 2. Artificial intelligence policy by field;
 3. Ways to secure the funds required for the development and use of artificial intelligence;
 4. Ways to build foundations for trust, such as ensuring the fairness, transparency, accountability, and safety of artificial intelligence;

5. Deleted <Sep. 29, 2025>
 6. Survey of artificial intelligence trends and the evaluation of such trends;
 7. Matters otherwise deemed necessary by the Mayor for the development and use of safe, trustworthy artificial intelligence.
- (3) The Mayor shall formulate and implement annual implementation plans pursuant to the master plans.
- (4) The master plan under paragraph (1) and the implementation plan under paragraph (3) may be formulated by inclusion in, respectively, a smart city and informatization master plan and an implementation plan under Articles 5 and 6 of the Seoul Metropolitan Government Ordinance on Smart Cities and Informatization.

Article 7 Deleted<Sep. 29, 2025>

Article 8 (Establishment and Functions of the Committee)

- (1) The Mayor shall establish the Seoul Metropolitan Government Artificial Intelligence Committee (hereinafter the “Committee”) to deliberate and make resolutions on matters concerning the development and use of artificial intelligence.
- (2) The Committee shall deliberate and pass resolutions on the following matters: <Amended on Sep. 29, 2025>
1. Matters concerning the formulation and modification of master plans and implementation plans;
 2. Matters concerning assessments of the public interest with regard to artificial intelligence;
 3. Matters concerning improvements to laws and institutions relating to the use and development of artificial intelligence;
 4. Deleted<Sep. 29, 2025>
 5. Matters concerning administrative, financial, and technological support for the use and development of artificial intelligence;
 6. Matters concerning the regulation of, social changes relevant to, and policy responses to high-impact artificial intelligence;
 7. Other matters determined by the Mayor concerning the use and development of artificial intelligence.
- (3) If an artificial intelligence subcommittee is established in the Smart City Committee under Article 7 of the Seoul Metropolitan Government Ordinance on Smart Cities and Informatization, the Mayor may order the subcommittee to perform the functions of the Committee as provided under paragraph (1).
- (4) The duration of the Committee shall be until Dec. 31, 2027.

Article 9 (Composition)

- (1) The Committee shall be composed of fifteen (15) or fewer members including ex officio members, commissioned members, including the Chairperson and the Vice-Chairperson.
- (2) The Chairperson and the Vice-Chairperson shall be elected by and from among the members.
- (3) Members shall be commissioned by the Mayor from among the following persons:
1. A Seoul Metropolitan Government public official whose work concerns artificial intelligence policy;
 2. A member of the Seoul Metropolitan Council recommended by the Council;
 3. A person with extensive knowledge and experience of artificial intelligence.

Article 10 (Members’ Term of Office)

A commissioned member’s term of office shall be two years, and may be renewed only once: Provided, however, that a substitute member’s term of office shall start anew.

Article 11 (Dismissal of Members)

The Mayor may dismiss a member who falls under any of the following:

1. Where a member becomes unable to perform his or her duties due to a mental or physical disability;
2. Where a member engages in any misconduct in connection with his or her duties or those of another member;
3. Where a member is deemed inappropriate to be a member of the committee due to his or her neglect of duties, injury to the dignity required of public officials, or other causes;
4. Where a member fails to recuse himself/herself despite falling under any of the subparagraphs of Article 12 (1);
5. Where a member expresses difficulty in performing his or her duties.

Article 12 (Exclusion, Challenge, and Recusal of Members)

(1) A member of the Committee who falls under any of the following cases shall be excluded from deliberation and resolution of the Committee:

1. Where a member, or a person who is or used to be the member’s spouse, is party involved in the agenda, or is a joint holder of rights or a joint obligor with a party involved in the agenda;

2. Where a member is a relative or used to be a relative of a party involved in the agenda;
 3. Where a member has given testimony, provided a statement, or been involved in consultations, research, contracting, or appraisal in relation to the agenda;
 4. Where a member or a corporation to which the member is affiliated is or has been an agent of a party involved in the agenda.
- (2) An involved party may apply to the Committee to challenge a member who falls under any of the reasons for exclusion provided under the foregoing paragraph (1), or whose fair deliberation and resolution cannot be expected under the circumstances and the Committee shall decide upon such request for recusal by a resolution. In this event, no member subject to an application for challenge may participate in the resolution.
- (3) A member who falls under any of the reasons for exclusion provided under the foregoing paragraph (1) shall recuse himself or herself from deliberation and resolution of the agenda.

Article 13 (Duties of the Chairperson)

- (1) The Chairperson of the Committee shall represent the Committee and assume overall charge of the Committee's duties.
- (2) In the event that the Chairperson is unable to perform his or her duties due to unavoidable causes, the Vice-Chairperson shall perform the Chairperson's duties by proxy; if neither the Chairperson nor the Vice-Chairperson is able to perform their duties due to unavoidable causes, a member designated in advance by the Chairperson shall perform the Chairperson's duties by proxy.

Article 14 (Meetings)

- (1) The Chairperson shall convene and chair meetings of the Committee.
- (2) A meeting of the Committee shall be opened by the attendance of the majority of the members on the register, and they shall make a resolution by affirmative vote of a majority of the attending members.

Article 15 (Secretary)

- (1) The Committee shall appoint a secretary to handle the Committee's affairs.
- (2) The chief in charge of the policy on artificial intelligence shall serve as the secretary.

Article 16 (Support Projects)

- (1) The Mayor may support the following projects for the safe and trustworthy development and use of artificial intelligence:
1. Investigations of domestic and international artificial intelligence technologies and regulations;
 2. Research, development, testing, and assessment of artificial intelligence technologies;
 3. Nurturing and training of artificial intelligence technology-related experts;
 4. Support for artificial intelligence-related startups and enterprises;
 5. Improvement of administrative services and implementation of smart city projects, etc. using artificial intelligence technologies;
 6. Other projects deemed necessary by the Mayor in relation to the development and use of artificial intelligence.
- (2) The Mayor may, within the available budget, subsidize support projects carried out by autonomous Gus and relevant corporations or organizations, as provided under paragraph (1).

Article 17 (Establishment of Cooperative Systems)

To facilitate the implementation of policies for the development and use of artificial intelligence, the Mayor shall actively cooperate with the central government, other local governments, and relevant corporations and organizations.

Addenda (Seoul Metropolitan Government Ordinance on Laying the Foundations for Artificial Intelligence Ethics) **<No. 9834, Sep. 29, 2025>**

Article 1 (Enforcement Date) This Ordinance shall enter into force on the date of its promulgation.

Article 2 (Amendment of Other Ordinances) The Seoul Metropolitan Governance Framework Ordinance on Artificial Intelligence shall be amended in part as follows:

Article 6 (2) 5 shall be deleted.